

TENTATIVE RULING FOR September 9, 2026

Department S22 – Judge David Driscoll

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred during the Pandemic. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-22) at (909) 521-3529 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2429215

MICHELLE VALVA v. STARBUCKS CORPORATION, et al.

TENTATIVE RULING

On September 25, 2024, Plaintiff Michelle Valva filed a Complaint against Defendants Starbucks Corporation and Does 1-50. Plaintiff's operative First Amended Complaint, filed April 17, 2025, alleges two causes of action for negligence and strict products liability.

Plaintiff's allegations are related to ordering hot water at a Starbucks drive through. When the hot water was being passed to Plaintiff, the lid popped off, causing scalding hot water to spill on her lap. Plaintiff alleges she suffered severe and permanent burn injuries.

Code of Civil Procedure section 1987.1, subdivision (a), authorizes the Court to quash, modify or direct compliance with a deposition subpoena requiring attendance by a witness or the production of books, documents, or other things. The Court also may "make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (*Ibid.*)

No meet and confer requirement exists in section 1987.1.

On August 14, 2026, Starbucks served a notice of taking the videotaped deposition of Kathy Sue Fugatt, accompanied by a deposition subpoena for Fugatt's personal appearance. (Yaghoobian Decl. ¶ 2 and Exh. A.)

In response to the deposition notice, Plaintiff sent a meet and confer letter in which Plaintiff objected to the deposition notice served on Fugatt, stating she does not appear anywhere in the litigation and has not been identified in any discovery responses. Plaintiff required Defendant to identify Fugatt's connection to the incident, and provide specific, articulable facts supporting a good-faith belief that Fugatt possesses discoverable information. Absent Defendant doing so, Plaintiff asserted that she will treat the notice as improper and will not produce a witness to appear, or otherwise participate in the deposition. After Plaintiff's second meet and confer email, Defense counsel responded stating counsel already attempted to work with Plaintiff's counsel to schedule the third-party deposition for a time that is convenient and because Plaintiff did not respond, a deposition notice was sent. Defense counsel asked on what grounds Plaintiff is moving to quash. To which Plaintiff's counsel responded that she may move to quash for matters that fall outside the scope of permissible discovery and no relevance has been shown for requiring Fugatt to appear. (Id. at Exhs. B and C.)

Plaintiff seeks to quash the Fugatt deposition notice and seeks a protective order precluding Defendant from taking Fugatt's deposition. Plaintiff's basis for the motion is that Fugatt does not appear anywhere in any discovery in the action and Defendant has not identified any fact connecting Fugatt to any claim or defense. Thus, she argues Fugatt's deposition falls outside the discovery permitted under Code of Civil Procedure section 2017.010. In her motion, Plaintiff does not provide any evidence or discussion of Fugatt's connection to Plaintiff or Starbucks. Instead, she argues that under section 2017.010, a party may obtain discovery of any matter that is "not privileged" and is either "relevant to the subject matter" of the action or "reasonably calculated to lead to the discovery of admissible evidence." She contends that Defendant has failed to make such a showing with the Fugatt deposition and therefore, it is not permissible.

Plaintiff also argues she has standing to bring this motion under section 1987.1, subdivision (b)(1), which provides for a party to move to quash a deposition subpoena.

The court intends to deny Plaintiff's motion. Code of Civil Procedure section 2017.010 provides:

Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.

While Plaintiff has a point that Defendant should have been able to explain reason for the Fugatt deposition before time and expense is spent on it, with the opposition, Defendant provides a sufficient explanation. Defense counsel states that as represented at the ex parte hearing, defense counsel understands that Fugatt is Plaintiff's friend, has known Plaintiff for over 20 years, and has information relevant to the incident and Plaintiff's claims and injuries. Defense counsel also states that while Plaintiff's counsel initially represented that Plaintiff does not know Fugatt, Plaintiff later admitted Fugatt is a friend of Plaintiff's father. Defense counsel also represented that in communicating with Fugatt about scheduling her deposition, communications have slowed as of late, with Fugatt expressing fear of retaliation from Plaintiff or her family. (Montenegro-Urch Decl. ¶¶ 5-7.)

It appears Fugatt may have information related to Plaintiff's character, given that defense counsel reports that at the ex parte hearing, Judge Frangie stated that if Fugatt has no relevant information then her deposition will be short; and if she testifies to Plaintiff's character, issues of admissibility will be addressed at trial.

In general, information is relevant if it might reasonably assist in evaluating the case, preparing for trial, or facilitating settlement. (*Moore v. Mercer* (2016) 4 Cal.App.5th 424, 447.) Any doubts regarding relevancy are resolved in favor of allowing discovery. (*Ibid.*) The broad scope of discovery is equally applicable to discovery from a nonparty as it is to a party. (*Ibid.*) Discovery is not limited to admissible evidence. (*Davies v. Superior Court* (1984) 36 Cal.3d 291, 301.) Plaintiff has not made a sufficient showing that the deposition subpoena is unreasonable or makes an oppressive demand. (Code Civ. Proc., § 1987.1, subd. (a).)

Plaintiff also does not show good cause for a protective order. Plaintiff does not provide sufficient evidence to demonstrate a protective order is necessary to protect Plaintiff from "unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (Code Civ. Proc., § 2025.420, subd. (a).) Plaintiff appears to know who Fugatt is and her connection to Plaintiff but did not provide any argument or evidence in support of the findings needed to grant a protective order.

TENTATIVE RULING

Plaintiff's motion to quash the deposition subpoena for the deposition of Kathy Sue Fugatt and for a protective order is denied in its entirety.